ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	16th Commission Meeting
DATE:	9 March, 2021
TIME:	02:00 PM
VENUE:	Hearing room

#	AGENDA	DECISIONS
1	Proposal to host ACC-RAA Bilateral Meeting – DoPS	DoPS apprised the Commission on the following key issues discussed besides complaints and AIN (Audit Information Number) referrals during the 7th ACC-RAA Bilateral Working Committee meeting held on 11 February 2021: 1. **Issuance of Audit Clearance**: Ensuring timely update on the status of referrals is a challenge having to coordinate information between the two agencies. Owing to this, it is not only impeding the issuance of Audit Clearance Certificate but also attracting public criticism for poor coordination between the two agencies. In this regard, the Working Committee discussed on digitalizing the information sharing practice through an established online platform to provide timely update on the status of referrals. Further, the platform can be integrated with the existing Audit Clearance System, wherein the dedicated focal persons from the two agencies can update the status instantly, thereby facilitating timely issuance of audit clearance. Since the RAA is currently undergoing IT systems enhancement, the above proposal can be included as one of the areas to be strengthened. 2. **Resolving pending ATRs**: Considering the scope and number of complaints referred, the RAA raised increasing administrative burden to submit disposal report for every complaint to the ACC. Instead, the RAA proposed to do away with this system and mainstream in the regular auditing process. Any corruption elements arising in the process shall be reported to the ACC immediately. In addition, regular updates on the referrals can be made during the Working Committee and Bilateral meetings. The meeting discussed that this will enable the RAA to focus on larger systemic issues while at the same time addressing complaints referred by the ACC. 3. **MoU between the ACC and RAA**: With the change in working context, the meeting discussed the need to revisit the MoU signed in 2015. Among others, discussed the need to revise the frequency of Working Committee & Bilateral meetings and including new potential areas of collaboration between the two institutions.

		4. **Accessing Audit Reports for Investigation**: In view of multiple request from the DoI to share Audit Reports directly from the regional offices, the RAA suggested to direct such request through the Follow-up & Clearance Division at the RAA Head Office. This is to ensure proper coordination in sharing the Audit Reports including from the regional offices. 5. **Pending disposal report on two complaints**: Of the two complaints (2018/7/11 & 2018/12/13) shared with the RAA, the ACC received disposal report for only 2018/12/13. However, during the meeting, it was learnt that the report would not be submitted since the content of the two complaints are similar in nature. Whereas, based on the disposal report received on 2018/12/13, the complaint was upgraded for investigation and accordingly updated in the system. 6. **Bilateral Meeting**: The Working Committee proposed to convene 7th Bilateral Meeting on 22 March 2021. Noting the above submissions, the Commission directed the following: • DoPS to ensure that the online information-sharing template is comprehensive also capturing emerging needs, and not only focusing on updating the status on referrals from both the agencies but also serves the purpose of submitting the disposal report. This in turn must facilitate effective internal decision-making processes. • DoPS to reduce the number of Working & Bilateral Committee meetings to one each annually with the flexibility to convene whenever necessary. • PPS to coordinate the review of existing MoU with the RAA also by consulting Departments/Divisions/Services on potential areas of cooperation. • DoPS to discuss again on routing request for all Audit Reports through Follow-up & Clearance Division at the RAA Head Office given the sensitive and confidential nature of information requested, especially those request made during the investigation process. Further, with the additional layer, it was cautioned that it might aggravate the current issue of timely access to reports and undermine the quality of information. The same may be discussed at the upcoming Bilateral Meeting. • DoPS to schedule the 7th Bilateral Meeting at their convenient time.
2	Present CSO Engagement Programme on Anti-Corruption & Justice – DoPE & PPS	DoPE & PPS presented the CSO Engagement Programme on Anti-Corruption & Justice for the Commission's endorsement. *Presentation slide attached.* Commission noted that the initiative (CSO engagement) is based on the Constitutional and legal provisions under the ACAB 2011 to promote active participation of civil society, non-governmental and community-based organizations, in thse prevention of and fight against corruption, and not externally driven. Above all, given the need to ensure that the independence of CSOs are not compromised,

		actually or perceived, the Commission directed the following: • Draw clear terms of reference on the roles and responsibilities in the implementing plan so as to ensure that the ACC is not 'hand-in-glove' with the CSOs. Further, while implementing the activities, the ACC should not go to the extent of mobilizing funds for the CSOs, which otherwise would invite unnecessary criticism. • Initiate further consultation with the management of other implementing agencies (such as RCoJ, OAG, DLG, ECB and CSOA) reflected in the programme prior to rolling out the programme for greater ownership.

Commissioner **Commissioner** **Chairperson**

CSO Engagement Programme

Anti-Corruption and Justice

Commission Meeting

9 March 2021

ACC
Lhadro Lam, Kawajangsa
Thimphu, BHUTAN
Post Box No. 1159
Telephone: +975-2-33 48 65
Tel. (o): +975-2-33 48 65/66/67
www.acc.org.bt

Background

- Engage diverse stakeholders for **concerted and multipronged** effort in the fight against corruption
- NKRA on '*Corruption Reduced*' in the 12th FYP envisages to **include informal sectors citizens groups, youth, etc**... mobilizing anti-corruption drive
- Dedicated Key Performance Indicator (KPI) **on '*Proportion of CSOs promoting transparency, accountability and integrity*'**
- NIACS 2019 – 2023 categorically mentions the importance of **empowering CSOs as one of the primary actors** in taking up anti-corruption agenda alongside their primary responsibilities

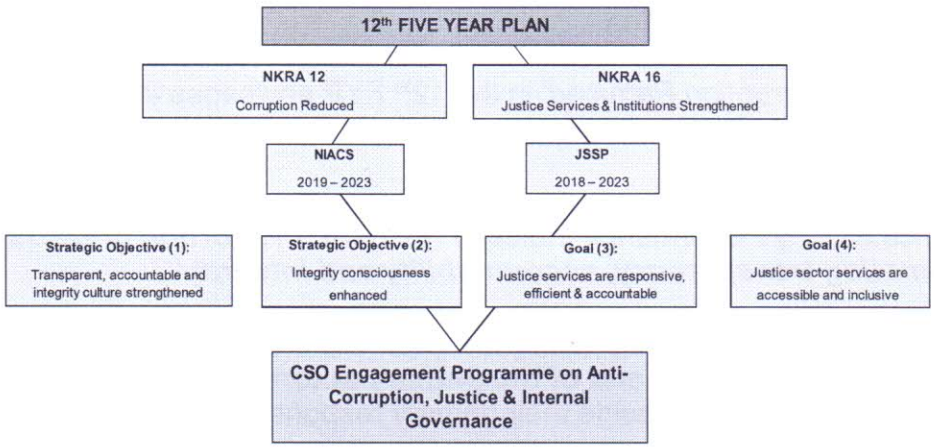
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Background

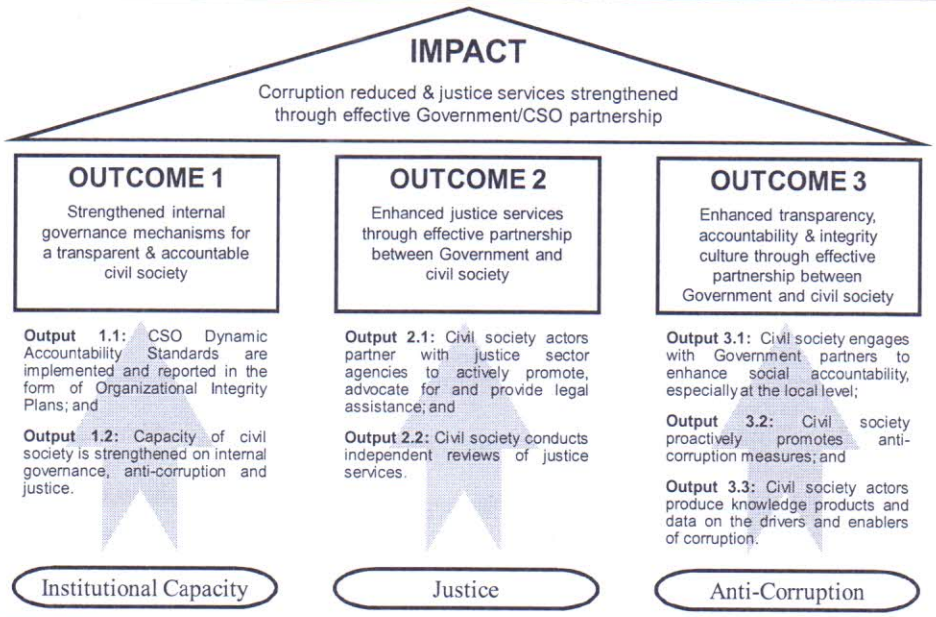
Analysis of complaints received in 2019

		Armed forces	Autonomous agencies	Corporations	CSO/ NGOs	Dzongkhag	Financial Institutions	Judiciary	Thromde	Gewog	Ministries	SOE	Constitutional Office	Others
	Total Complaints Received	8	35	38	6	33	10	6	15	89	72	3	6	75
Decision on complaints	Qualified for investigation	0	1	4		2	4		1	3	6			4
	For Information Enrichment		4	5	1	8	1		2	9	9		3	6
	Share for Action	3	5	10	2	11	1		6	30	25	2		18
	Share for sensitization	2	6	7	3	3	1	2	2	24	9	1	1	16
	Total	**5**	**16**	**26**	**6**	**24**	**7**	**2**	**11**	**66**	**49**	**3**	**4**	**44**
	Percent	**62.5**	**45.7**	**68.4**	**100.0**	**72.7**	**70.0**	**33.3**	**73.3**	**74.2**	**68.1**	**100.0**	**66.7**	**58.7**
	Dropped	3	19	12	0	9	3	4	4	23	23		2	31
	Dropped %	37.5	54.3	31.6	0.0	27.3	30.0	66.7		25.8	31.9	0.0	33.3	41.3

Alignment with the 12th Five Year Plan



Results Framework



Risk Matrix

Outputs	Risk Factors: Low	Risk Factors: Medium	Risk Factors:	Mitigation Measures
Outcome 1: Strengthened internal governance mechanisms for a transparent and accountable civil society				
Output 1.1. CSO Dynamic Accountability Standards are implemented and reported in the form of Organizational Integrity Plans		Ownership from the CSOA to adopt and regulate		Incorporate in the CSO Rules & Regulations
Output 1.2: Capacity of civil society is strengthened on internal governance, anti-corruption and justice				Publish training manuals for ToT
Outcome 2: Enhanced justice services through effective partnership between Government and civil society				
Output 2.1: Civil society actors partner with justice sector agencies to actively promote, advocate for and provide legal assistance		Coordination and support from the relevant justice agencies		Optimize Justice Sector Working Committee
Output 2.2: Civil society conducts independent reviews of justice services				Ensure rigorous consultation and engagement during the process of review
Outcome 3: Enhanced transparency, accountability & integrity culture through effective partnership between Government and civil society				
Output 3.1: Civil society engages with Government partners to enhance social accountability, especially at the local level		Coordination and support from the relevant agencies		Optimize existing platforms such as C-MAC
Output 3.2: Civil society proactively promotes anti-corruption measures		Legal and policy conducive environment		ACC to lead the discussions using ACAB provisions & Decentralization Policy
Output 3.3: Civil society actors produce knowledge products and data on the drivers and enablers of corruption	Regularity of data/reports to ensure consistency for timely reporting			Mobilize adequate resources including sharing from relevant public agencies

Implementation Plan & Budget

Outcome 1: Strengthened internal governance mechanisms for a transparent and accountable civil society

No.	Activity	Responsibility	Budget	Budget Break Down (2020 - 2023) Year 1	Year 2	Year 3
Output 1.1. CSO Dynamic Accountability Standards are implemented and reported in the form of Organizational Integrity Plans						
1.1.1.	Adopt and implement the CSO Dynamic Accountability Standards for all the CSO	BTI/CSOA/ACC	900,000.00	540,000.00	180,000.00	180,000.00
1.1.2.	Develop OIP in the CSOs and report on its progress periodically	BTI/CSOA/ACC	500,000.00	200,000.00	150,000.00	150,000.00
1.1.3.	Conduct peer review on OIP implementation of the CSOs to showcase best practices	BTI	200,000.00	-	100,000.00	100,000.00
1.1.4.	Conduct monitoring and produce a report on the effectiveness of governance mechanisms in the CSOs	CSOA	600,000.00	-	300,000.00	300,000.00
			2,200,000.00	740,000.00	730,000.00	730,000.00
Output 1.2: Capacity of civil society is strengthened on internal governance, anti-corruption and justice						
1.2.1.	Capacity assessment and mapping of core competencies of the CSOs vis-à-vis anti-corruption, justice and governance	BTI/ACC/RCoJ/OAG	700,000.00	490,000.00	210,000.00	-
1.2.2.	Develop training content for the CSOs on anti-corruption and governance principles, policies & measures, and conduct training	BTI/ACC/RAA	2,000,000.00	800,000.00	600,000.00	600,000.00
1.2.3.	Develop training content for the CSOs in the areas of justice services and conduct training	BTI/RCoJ/OAG/BNLI	2,000,000.00	800,000.00	600,000.00	600,000.00
			4,700,000.00	2,090,000.00	1,410,000.00	1,200,000.00
	Total (Outcome 1)		**6,900,000.00**	2,830,000.00	2,140,000.00	1,930,000.00

Implementation Plan & Budget

Outcome 2: Enhanced justice services through effective partnership between Government and civil society

No.	Activity	Responsibility	Budget	Budget Break Down (2020 - 2023) Year 1	Year 2	Year 3
Output 2.1: Civil society actors partner with justice sector agencies to actively promote, advocate for and provide legal assistance						
2.1.1.	Identify specific justice services where the CSOs can collaborate	BTI	200,000.00	200,000.00	-	-
2.1.2.	Design and undertake legal advocacy (such as rights to access to justice, legal aid, assistance to victims and witnesses, awareness on arrest and production in court)	BTI	2,000,000.00	800,000.00	600,000.00	600,000.00
2.1.3.	Strengthen legal assistance programs (e.g. ALAC, CBSS, etc.)	BTI/RENEW/BAOWE	2,000,000.00	800,000.00	600,000.00	600,000.00
2.1.4.	Develop digital civic space to address justice issues		500,000.00	150,000.00	350,000.00	-
2.1.5.	Coordinate Community Engagement Forum		600,000.00	210,000.00	210,000.00	180,000.00
			5,300,000.00	2,160,000.00	1,760,000.00	1,380,000.00
Output 2.2: Civil society conducts independent reviews of justice services						
2.2.1.	Conduct study/CRC on effectiveness of selected justice services	BTI/BEA	2,100,000.00	630,000.00	735,000.00	735,000.00
			2,100,000.00	630,000.00	735,000.00	735,000.00
	Total (Outcome 2)		**7,400,000.00**	2,790,000.00	2,495,000.00	2,115,000.00

Implementation Plan & Budget

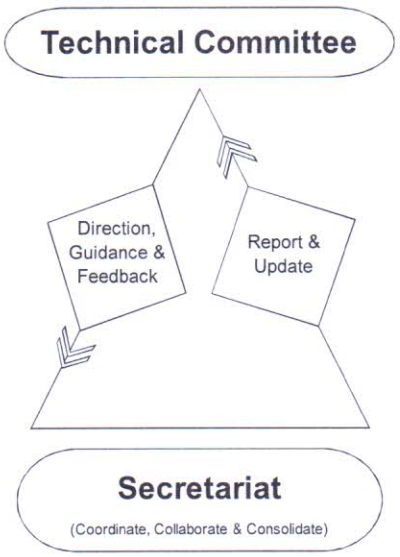
Outcome 3: Enhanced transparency, accountability & integrity culture through effective partnership between Government and civil society

No.	Activity	Responsibility	Budget	Budget Break Down (2020 - 2023) Year 1	Year 2	Year 3
Output 3.1: Civil society engages with Government partners to enhance social accountability, especially at the local level						
3.1.1.	Pilot social accountability mechanism in 1 – 2 selected community	BTI/ACC/DLG	1,500,000.00	525,000.00	525,000.00	450,000.00
			1,500,000.00	525,000.00	525,000.00	450,000.00
Output 3.2: Civil society proactively promotes anti-corruption measures						
3.2.1.	Pilot monitoring of Integrity Pact implementation in public procurement by the CSOs	BTI/ACC/GPPMD	500,000.00	100,000.00	200,000.00	200,000.00
3.2.2.	Promote investigative journalism to expose corruption incidences	JAB/BMF	500,000.00	150,000.00	175,000.00	175,000.00
3.2.3.	Promote monitoring of electoral corruption during elections by the CSOs	BCMD/BTI/ECB/ACC	600,000.00	300,000.00	-	300,000.00
			1,600,000.00	550,000.00	375,000.00	675,000.00
Output 3.3: Civil society actors produce knowledge products and data on the drivers and enablers of corruption						
3.3.1.	Conduct shadow reports/surveys related to corruption issues and anti-corruption strategies/measures including the effectiveness of the ACC such as NCBS	BTI/ACC	5,000,000.00	250,000.00	2,250,000.00	2,500,000.00
			5,000,000.00	250,000.00	2,250,000.00	2,500,000.00
	Total (Outcome 3)		**8,100,000.00**	1,325,000.00	3,150,000.00	3,625,000.00
	Contingency (10%)		**2,240,000.00**	694,500.00	778,500.00	767,000.00
	Grand Total (Outcome 1 + 2 + 3)		**24,640,000.00**	6,945,000.00	7,785,000.00	7,670,000.00

Resource Mobilization

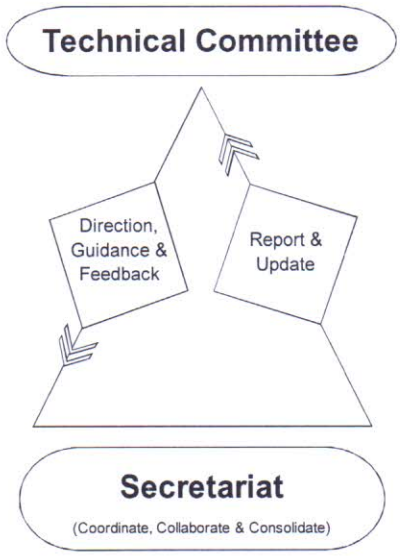
Estimate Budget for the Programme	**Nu. 24,640,000.00**
Committed budget to the Programme	**Nu. 6,870,000.00**
UNDP	Nu. 1,120,000.00 (USD 16,000.00)
ADA	Nu. 750,000.00 (Euro 10,000.00)
ACC	Nu. 5,000,000.00
Budget Gap	**Nu. 17,770,000.00**
Prospective donor	
Helvetas	

M&E Matrix



Anti-Corruption Commission (Chairperson)
CSO Authority (Member)
Office of the Attorney General (Member)
Department of Local Government (Member)
Development Partners (Member)
BTI and other CSOs (Member)
Project Coordinator, ACC (Member Secretary)

M&E Matrix



Option 1:

Secretarial role	Pros	Cons
BTI	• Promote long term sustainability of initiatives in the CSOs • Reduce administrative burden to the ACC • Effective coordination & peer influence among CSOs • Technical knowledge on anti-corruption & justice to drive initiatives	• Limited control of delivery by the ACC • Limited regulatory authority to drive the initiatives

Option 2:

Secretarial role	Pros	Cons
CSOA	• Regulate initiatives as per CSO Act • Effective coordination among CSOs • Reduce administrative burden to the ACC	• Limited control of delivery by the ACC • Limited capacity (HR & Finance) • Limited technical knowledge on anti-corruption & justice to drive initiatives • Limitation in ensuring long term sustainability

Option 3:

Secretarial role	Pros	Cons
ACC (DoPE)	• Control of delivery • Technical knowledge on anti-corruption & justice to drive initiatives • Regulate initiatives as per UNCAC & ACAB 2011	• Limited manpower • Limited peer influence among CSOs • Limitation in ensuring long term sustainability

M&E Matrix

Output	Indicator	Baseline/ Year	Target
CSO Dynamic Accountability Standards are implemented and reported in the form of Organizational Integrity Plans	CSO Dynamic Accountability Standards adopted	Draft Ready/2020	2022
	Proportion of established CSOs having strong internal governance mechanism	NA	80 percent
Capacity of civil society is strengthened on internal governance, anti-corruption and justice	Training modules on internal governance, justice and anti-corruption developed	NA/2020	2021
	Number of ToT on internal governance, justice and anti-corruption established	NA/2020	53
Civil society actors partner with justice sector agencies to actively promote, advocate for and provide legal assistance	Number of legal advocacy and assistance program developed and implemented by the CSOs in partnership with the Justice Institutions	2 (ALAC & CBSS)/2020	6 or more (legal advocacy, legal aid, ALAC, CBSS, child justice, community engagement forum, etc.)
Civil society conducts independent reviews of justice services	Number of CRC conducted to gauge the effectiveness of justice services	NA/2020	3 or more
Civil society engages with Government partners to enhance social accountability, especially at the local level	Number of Local Government piloted on social accountability initiative	NA/2020	2 or more
Civil society proactively promotes anti-corruption measures	Number of CSOs involved in monitoring the implementation of Integrity Pact	NA/2020	3 or more
	Number of corruption investigative articles/journals published	NA/2020	10 or more
	Number of CSOs involved in monitoring electoral corruption	NA/2020	5 or more
Civil society actors produce knowledge products and data on the drivers and enablers of corruption	Number of reports on corruption issues and anti-corruption measures published	1 (NCBS)/2020	2 or more (NCBS & others)

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Thank you la.

